AGRIVI MINING SYNDICATE
versus
MOLLY DICK

HIGH COURT OF ZIMBABWE
Civil Division
ISSUED
HCH156/26 06 Feb 2026
HARARE
JUDICIAL SERVICE COMMISSION

HIGH COURT OF ZIMBABWE
WAMAMBO J
HARARE; 21 January 2026; 02 February 2026

Urgent Chamber application

W Jiti with A Mutima for the applicant
CP Chikowore with A Muvirimi for the respondent

WAMAMBO J: This is an urgent chamber application seeking an interdict against the Respondent to prevent interference with the Applicant's mining operations.

The applicant submitted that it entered into a Joint Venture Agreement with the respondent on 07 April 2021 regarding gold mining operations within special grant No. 6873 in Mashonaland Central. The applicant contended that, pursuant to Clause 4.1 of the agreement, it was granted specific mining rights over a 50-hectare area defined by precise geographical coordinates, and that under Clause Part E, it held the sole responsibility for all mining activities within that designated block.

The applicant further submitted that the respondent had unlawfully encroached upon these boundaries by asserting claims over the area and employing artisanal miners to conduct unauthorized activities. It was submitted that while an initial disturbance in December 2025 was resolved with police assistance, the respondent committed a further breach on 08 January 2026 by unilaterally introducing a compressor and drilling equipment into the applicant's operational area without consent. Finally, the applicant maintained that the respondent's claim of a right to operate within the same area was a direct violation of the Joint Venture Agreement which posed an immediate threat to the applicant's machinery and investments.

The matter was initially heard on the 21st of January 2026. After ventilation of issues only one matter was left to be resolved for the 28th of January 2026, which is whether the respondent was encroaching into the applicants claim as per the boundaries set out under clause 4.1 of the parties' joint venture agreement.

The applicants submitted that the need to act arose on 8th January 2026, when the Respondent unilaterally introduced a compressor for mining and drilling activities in the same operational area.

It was not denied by the respondents that they had infringed upon the boundaries set out as per the coordinates set out under clause 4.1 as per the joint venture agreement entered into by the litigants.

The respondent submitted that there had been a mistake as per the coordinates set out under clause 4.1. They said the coordinates fell outside the special grant. The respondent merely made those submissions orally on the day in question. No evidence was placed by the respondent to confirm the averments it had made. It is trite that he who alleges bears the onus to prove the same.

In *Smit Investment Holdings SA (Proprietary) Limited and anor vs The Sheriff of Zimbabwe and anor SC33-18* the court made the following statement

> "The court relied on the bald averment by the second respondent that the documents were not authentic and simply took that to be correct. It is the second respondent that levelled allegations of inauthenticity and collusion. Consequently, it is the second respondent that should have proven the same. This position was succinctly captured in the case of *Circle Tracking* v *Mahachi* SC 4/07, where the Court held that the principle that he who alleges must prove is a basic concept of our law."

The court finds that the allegations made by the respondent regarding the exact layout of the coordinates set out under clause 4.1 were unfounded and therefore without merit

Furthermore, the doctrine of sanctity of contract (*pacta sunt servanda*) dictates that parties cannot dispute or escape the consequences of a valid contract they freely entered into, even if terms are onerous. Courts will not rewrite such contracts, upholding the principle that parties are bound by their voluntary agreements as seen in *Ashanti Goldfields Zimbabwe Limited v Jafati Mdala* and *Mangwana* v *Mparadzi SC60-17.* The Supreme court referred to the principle as it was set out to its satisfaction in the case of *Kundai Magodora & Ors* v *Care International Zimbabwe* SC24-14 by PATEL JA as he then was when he stated the following:

> "In principle, it is not open to the courts to rewrite a contract entered into between the parties or to excuse any of them from the consequences of the contract that they have freely and voluntarily accepted, even if they are shown to be onerous or oppressive. This is so as a matter of public policy. See Wells v South African Alumenite Company 1927 AD 69 at 73; CHRISTIE: The Law of Contract in South Africa (3rd ed.) at pp. 14-15. Nor is it generally permissible to read into the contract some implied or tacit term that is in direct conflict with its express terms"

The court finds that the applicant met all the requirements for an interim relief as prayed for and to that end is rendered an order in terms of the draft order.



WAMAMBO J:.....

Jiti Law Chambers, the applicant's legal practitioners
Muvirimi Law Chambers, the respondent's legal practitioners